REPUBLIC OF THE PHILIPPINES
SANGGUNIANG PANLUNGSOD NG DABAW
CITY OF DAVAO

EXCERPTS FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG PANLUNGSOD OF DAVAO CITY HELD ON JANUARY 23, 2007

ORDINANCE NO. 0309-07
Series of 2007

AN ORDINANCE BANNING AERIAL SPRAYING AS AN AGRICULTURAL PRACTICE IN ALL AGRICULTURAL ACTIVITIES BY ALL AGRICULTURAL ENTITIES IN DAVAO CITY

WHEREAS, Section 15, Article II of the 1987 Philippine Constitution explicitly declares that the State shall protect and promote the right to health of the people and instill health consciousness among them;

WHEREAS, Section 16, Article II of the Constitution guarantees that the State shall protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature;

WHEREAS, Section 16 of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, vests local government units with police powers to promote the general welfare, enhance public safety, and preserve the comfort and convenience of inhabitants;

WHEREAS, extensive public hearings and epidemiological testimonies submitted to the Sangguniang Panlungsod demonstrated that chemical pesticide drift resulting from aerial spraying severely impacts contiguous residential communities, public school grounds, and freshwater recharge basins;

WHEREAS, it is the paramount legislative obligation of the City Government of Davao to enact decisive measures that safeguard the health, well-being, and ecological integrity of all communities within its jurisdiction;

Be it enacted by the Sangguniang Panlungsod of Davao City in session assembled that:

SECTION 1. TITLE.

This Ordinance shall be known as 'An Ordinance Banning Aerial Spraying as an Agricultural Practice in all Agricultural Activities by all Agricultural Entities in Davao City'.

SECTION 2. POLICY OF THE CITY.

It shall be the policy of the City of Davao to eliminate the method of aerial spraying as an agricultural practice in all agricultural activities by all entities within Davao City.

SECTION 3. DEFINITION OF TERMS.

For purposes of this Ordinance, the following terms shall be defined as follows:

a. Aerial Spraying — refers to the application of substances through the use of aircraft of any form which dispenses the substances in the air.

b. Agricultural Practices — refer to the practices conducted by agricultural entities in relation to their agricultural activities.

c. Agricultural Activities — refer to activities that include, but are not limited to, land preparation, seeding, planting, cultivation, harvesting, and bagging.

d. Agricultural Entities — refer to persons, natural or juridical, involved in agricultural activities.

e. Buffer Zone — is an identified thirty (30) meter zone within and around the boundaries of agricultural farms/plantations that need special monitoring to avoid or minimize harm to the environment and inhabitants pursuant to policies and guidelines set forth in this Ordinance and other government regulations. It is an area of land that must lie within the property which does not include public lands, public thoroughfares, or adjacent private properties. It must be planted with diversified trees that grow taller than what are usually planted and grown in the plantation to protect those within the adjacent fields, neighboring farms, residential areas, schools, and workplaces.

SECTION 4. SCOPE AND APPLICABILITY.

The provisions of this Ordinance shall apply to all agricultural entities within the territorial jurisdiction of Davao City.

SECTION 5. BAN OF AERIAL SPRAYING.

A ban on aerial spraying shall be strictly enforced in the territorial jurisdiction of Davao City three (3) months after the effectivity of this Ordinance.

SECTION 6. BUFFER ZONE.

Consistent with national legislation and government regulations, all agricultural entities must provide for a thirty (30) meter buffer zone within the boundaries of their agricultural farms/plantations. This buffer zone must be properly identified through Global Positioning System (GPS) survey. A survey plan showing the metes and bounds of each agricultural farm/plantation must be submitted to the City Mayor's Office, with the buffer zone clearly identified therein.

SECTION 7. PENAL PROVISION.

Violation of any provision of this Ordinance shall be punished as follows:

a. First Offense: Fine of Five Thousand Pesos (■5,000.00) and imprisonment of not less than one (1) month but not more than three (3) months;

b. Second Offense: Fine of Five Thousand Pesos (■5,000.00) and imprisonment of not less than three (3) months but not more than six (6) months, and suspension of City-issued permits and licenses for one (1) year;

c. Third Offense: Fine of Five Thousand Pesos (■5,000.00) and imprisonment of not less than six (6) months but not more than one (1) year, and perpetual cancellation of City-issued permits and licenses;

Provided, that in case the violation has been committed by a juridical person, the person in charge of the management thereof shall be held liable.

SECTION 8. REPEALING CLAUSE.

Any Ordinance that is contrary to or inconsistent with any of the provisions of this Ordinance shall be deemed amended or repealed accordingly.

SECTION 9. EFFECTIVITY.

This Ordinance shall take effect thirty (30) days from its publication in a newspaper of general circulation in Davao City.

ENACTED, January 23, 2007 by a majority vote of all the Members of the Sangguniang Panlungsod.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sanggunian

ATTESTED:

LUIS C. BONGUYAN
Vice Mayor & Presiding Officer

APPROVED, February 9, 2007:

RODRIGO R. DUTERTE
City Mayor